

Irfan Ali v. State of U.P. — electricity recovery writ dismissed for CGRF remedy

Allahabad High Court · Division Bench · 29 July 2020 · Writ-C No. 9334 of 2020 · **Writ dismissed; petitioner relegated to CGRF under clause 7.10.**

HEADNOTE

Writ challenging a recovery certificate for electricity dues dismissed. Clause 7.10 of the U.P. Electricity Supply Code, 2005 supplies an effective Consumer Grievance Redressal Forum remedy, including interim protection, and the claim of non-liability for the period before the 15 January 2015 connection raises disputed facts unfit for writ adjudication. Liberty reserved to approach the Forum.

FACTUAL SUMMARY

Irfan Ali challenged a recovery certificate dated 18 January 2020 for electricity charges, asserting the premises were completed in 2014 and the first connection in his name was granted only on 15 January 2015, so he could not be billed for any earlier period. Those assertions rested on an application to the Tehsildar and the Executive Engineer, Vidyut Vitaran Khand, Rural EDSD Kanth, Moradabad. The licensee's counsel said clause 7.10 of the Electricity Supply Code, 2005 gave an effective Consumer Grievance Redressal Forum remedy, including interim protection.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

CGRF alternate remedy for electricity recovery disputes

HOLDING

A writ petition challenging a recovery certificate for electricity charges is not entertainable where clause 7.10 of the Electricity Supply Code, 2005 affords an effective Consumer Grievance Redressal Forum remedy, including power to grant interim protection, and the consumer's assertion of non-liability for a pre-connection period requires adjudication of questions of fact; the petition is dismissed with liberty to approach the Forum. ¶ 3

PRINCIPLE TAGS

alternate-remedy-clause-7.10 Writ against a recovery certificate for electricity charges dismissed because clause 7.10 supplies an effective CGRF remedy, including interim protection, and the pre-connection liability dispute is factual. ¶ 3

cgrf-7.10-alternate-remedy Petitioner relegated to the Consumer Grievance Redressal Forum under clause 7.10 with liberty to seek that statutory route, including interim protection. ¶ 3

clause-7.10-forum-ombudsman-route-for-billing-grievances Challenge to a revenue recovery of electricity charges treated as a billing grievance for which clause 7.10 is the proper Forum route. ¶ 3

consumer-grievance-redressal-forum-remedy-clause-7.10 Existence of the clause 7.10 Forum remedy, together with disputed facts on when the connection and premises came into being, made the writ unfit to entertain. ¶ 3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER IS LIABLE FOR ELECTRICITY CHARGES FOR ANY PERIOD BEFORE THE 15 JANUARY 2015 CONNECTION

Left to the Consumer Grievance Redressal Forum; the Court declined to decide the disputed facts on writ. ¶ 3

